

24TRCV02959 24TRCV02959

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-31

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Case Number: 24TRCV02959 Hearing Date: August 31, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

REVA

MENDEZ

Plaintiff,

Case No.:

24TRCV02959

vs.

[Tentative]

Denied

WALMART,

INC.; SAM'S CLUB and DOES 1 to 20, Inclusive,

Defendants.

Hearing

Date: September
1, 2026

Moving Party: Defendant Sam's Club

Responding Party: Plaintiff Reva Mendez

HEARING: Motion for Summary Judgment

The
Court considered the moving, opposition, and reply papers.

RULING

The Court denies the Motion for Summary
Judgment.

BACKGROUND

On September 4, 2024, Plaintiff Reva
Mendez filed the Complaint against Defendants Walmart and Sam's Club alleging
causes of action for premises liability and negligence.

On April 9, 2026, Defendant Sam's
Club filed the Motion for Summary Judgment.

On August 12, 2026, Plaintiff filed
the Opposition.

On August 18, 2026, Defendant filed
the Reply.

EVIDENTARY OBJECTIONS

Plaintiff's Objections to Defendant's Evidence:

Overruled: 1-2

Sustained:

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As to each cause of action, as framed by the complaint, the defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2); see also *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

“Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Id.* at 163.)

DISCUSSION

Plaintiff Reva

Mendez alleges she slipped and fell on a blueberry on the floor while shopping at Defendant's store located at 2601 Skypark Dr., Torrance, CA 90505.

Causes

of action 1 and 2 – Negligence and Premises Liability.

The

elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp, (2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property to avoid exposing others to an unreasonable risk of harm. (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.) The existence and scope of duty are legal questions for the court. (Id. at p. 36.) If there is a condition that poses a danger to customers and others on the premises, the property owner is "under a duty to exercise ordinary care either to make the condition reasonably safe for their use or to give a warning adequate to enable them to avoid the harm." (Bridgman v. Safeway Stores, Inc. (1960) 53 Cal.2d 443, 446.)

Defendant argues

that it cannot be held liable to Plaintiff because it had no notice of the alleged dangerous condition. Defendant reasons that a premises owner is liable only for those dangers of which it had actual or constructive notice, and it contends that the undisputed evidence establishes that it had neither.

As to actual

notice, Defendant relies on both video and testimonial evidence to argue that no employee of Defendant was aware of the alleged dangerous condition before Plaintiff fell. Defendant states that an employee walked through the subject area at 11:13 a.m., the blueberry spill occurred at 11:28 a.m., roughly fifteen minutes later, and Plaintiff fell at 11:39 a.m., about eleven minutes after the spill. Defendant emphasizes that no employee passed through the area between the time the spill occurred and the time Plaintiff fell, and that Defendant was not otherwise alerted to the spill during that window.

As to constructive

notice, Defendant acknowledges that a plaintiff may establish notice by showing

that the condition existed long enough that the owner should have discovered it through the exercise of ordinary care, but it argues that no such showing can be made here. (*Ortega v. Kmart* (2001) 26 Cal.4th 1200, 1210.)

Defendant argues that the Court has found a lack of constructive notice where the area had been inspected eight to nine minutes before the fall. (*Moore v. Wal-Mart Stores, Inc.* (2003) 111 Cal.App.4th 472.) Because the spill existed for only about eleven minutes before Plaintiff fell, and an employee had passed through fifteen minutes before it formed, Defendant contends that no constructive notice existed as a matter of law. (*Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026.)

Defendant further

argues that the surveillance video independently demonstrates the absence of notice. Reiterating that a premises owner is liable only for dangers of which it had actual or constructive notice, Defendant maintains that neither form of notice appears in the video. (*Perbost v. San Marino Hall-School for Girls* (1948) 88 Cal.App.2d 796, 803-804.) Defendant notes that when witness testimony is inconsistent with the video, the inconsistency is not treated as a disputed fact, and the video controls. (*Swigart v. Bruno* (2017) 13 Cal.App.5th 529, 534, fn. 4.) Applying these authorities, Defendant argues that Plaintiff cannot create a triable issue by offering testimonial evidence that the surveillance video does not reflect. Defendant therefore concludes that, because it had neither actual nor constructive notice and the video confirms that absence of notice, Plaintiff cannot prevail on her claim.

In opposition,

Plaintiff argues that the motion must be denied because Defendant fails to carry its initial burden of production. A moving defendant must show that the plaintiff has not established, and cannot reasonably expect to establish, a prima facie case on one or more elements, and where the defendant's own evidence does not support judgment, the court must deny the motion without reaching the opposition.

On actual notice,

Plaintiff argues that the surveillance video shows a person entering the produce section wearing an apron, who Defendant's PMK identified as a bakery employee. Plaintiff argues this creates a triable issue over whether Plaintiff had actual knowledge of the spill.

On constructive

notice, Plaintiff argues that a failure to inspect within a reasonable time supports an inference that the condition existed long enough to be discovered, that the duty is heightened in a self-service store, and that no fixed time limit applies. Plaintiff points to evidence showing that Defendant assigned no inspector, set no inspection interval, kept no inspection or cleaning logs, and left the task to whichever associate happened to walk by. The only interval Defendant establishes is roughly twenty-six minutes between an unidentified employee's walk-through and the fall, and whether that satisfies ordinary care is a question for the jury. Furthermore, Plaintiff's safety expert opines that an adequate program requires accountability, frequency, and verification, none of which Defendant had.

Constructive notice

"The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts." (Ortega, supra, 26 Cal.4th 1200, 1206-1207.)

Here, Defendant's own characterization of the fall states that the spill was on the ground for 11 minutes prior to Plaintiff's fall. (UMF 3.) Whether a dangerous condition existed long enough to create constructive notice is a question of fact. (Ortega, supra, 26 Cal.4th 1200, 1213.) In *Girvetz v. Boys' Market* (1949) 91 Cal.App.2d 827, 831, Defendants' own authority, the Court opined that a dangerous condition present "for as long as ten or fifteen minutes would in all probability be held to justify submitting the cause to the jury," depending on the circumstances. (Id. at 831.) Thus, an eleven-minute duration creates a question of fact regarding constructive notice best left to a jury. Consequently, the Court finds that Defendant has not met its burden of showing that it lacked notice of the alleged dangerous condition.

Therefore, the Court denies the Motion for Summary Judgment.